

TAMS MUN I

SEPTEMBER 26, 2026



DISEC

Preventing the Acquisition of Weapons of Mass Destruction by Non-State Actors

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Letter from the Chair

Dear delegates,

Welcome to the inaugural session of TAMS Model United Nations, held on 26 September at the Business Leadership Building at the University of North Texas. On behalf of your dais, it is our privilege to chair this committee.

Most of you have seen *Iron Man*. The opening act is a weapons manufacturer riding through Afghanistan in a convoy, getting ambushed, and discovering that the men holding him captive have a warehouse full of crates stamped with his own company's name. Nobody sold weapons to the Ten Rings. The weapons simply arrived, through a supply chain that Stark Industries believed it controlled and did not.

Strip away the arc reactor and that is this committee's entire subject. The historical case that defines the field is almost identical: **A. Q. Khan**, a Pakistani metallurgist, spent two decades quietly selling uranium centrifuge designs and components to Libya, Iran, and North Korea out of a private network of suppliers across three continents. No government decided to proliferate. The leak was in the supply chain, and it took twenty years to find.

The hardest thing about this topic is that everyone agrees with the goal. No state in the General Assembly is in favor of terrorists acquiring nerve agents. The disagreement is entirely about **means**, and the means are where the politics live: whether export controls are nonproliferation or technology denial, whether the Security Council may legislate binding obligations for the whole membership, whether biosecurity rules written in Geneva will be paid for by states that did not write them, and whether "capacity-building" is assistance or supervision.

An advanced committee that spends two days restating that terrorism is bad has wasted two days. The good clauses in this room will be the specific ones: what gets screened, by whom, under what standard, funded how, and reported to which body. Bring numbers. Bring treaty article citations. Bring an answer for the delegate who says your proposal restricts their Article IV rights.

Sincerely,

Your Chair

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1. Defining the Problem

WMD conventionally covers nuclear, radiological, biological, and chemical (CBRN) weapons. They are not interchangeable, and conflating them produces bad resolutions. Their acquisition profiles differ sharply:

- **Nuclear.** Highest barrier. A non-state actor realistically cannot enrich uranium or produce plutonium; the pathway is **theft or diversion of fissile material**, or purchase from an insider. Global stocks of highly enriched uranium and separated plutonium remain measured in hundreds of tons across dozens of sites.
- **Radiological (“dirty bomb”).** Low barrier. Uses conventional explosives to disperse radioactive material from medical, industrial, or research sources — cesium-137 in blood irradiators, cobalt-60, iridium-192 in radiography cameras. Casualties would likely be modest; economic and psychological disruption would not be. The IAEA’s Incident and Trafficking Database has recorded thousands of incidents involving material out of regulatory control since 1993, a substantial share of them thefts.
- **Chemical.** Moderate barrier, demonstrated repeatedly. Aum Shinrikyo synthesized sarin and attacked the Tokyo subway in 1995 (13 dead, thousands injured). ISIS manufactured and used sulfur mustard in Iraq and Syria in 2015–16, confirmed by OPCW investigation. Toxic industrial chemicals — chlorine, ammonia — are an unregulatable substitute available at any water treatment plant.
- **Biological.** The fastest-moving barrier, and the one falling. The 2001 anthrax letters killed five with material traced to a domestic state laboratory. The concern now is different: gene synthesis, benchtop DNA synthesizers, published enhanced-pathogen research, and the possibility that AI systems lower the tacit-knowledge barrier that has historically protected us more than any treaty has.

“**Non-state actor**” in this context is broader than terrorist groups: it includes criminal procurement networks, insider threats, insurgent groups holding territory, and proliferation entrepreneurs. The **A.**

Q. Khan network — which sold centrifuge designs and components to Libya, Iran, and North Korea for two decades — remains the defining case, because it showed that the private supply chain, not the state, was the leak.

2. The Existing Legal Architecture

Binding on all states

- **UNSC Resolution 1540 (2004).** The centerpiece. Adopted under Chapter VII, it obliges *every* state to refrain from supporting non-state actors seeking WMD, and to adopt and enforce domestic laws criminalizing such activity, plus physical protection, accounting, border, and export/transshipment controls. It was constitutionally contentious — the Council legislating general obligations rather than addressing a specific situation — and some non-aligned states accepted it under protest. Implementation is monitored by the **1540 Committee**, extended by Resolution 1977 (2011) and again by **Resolution 2663 (2022) through 2032**.
- **UNSC Resolution 1373 (2001)** — terrorist financing and safe havens.
- **ICSANT (2005)** — International Convention for the Suppression of Acts of Nuclear Terrorism.
- **Amended CPPNM (2005 Amendment, in force 2016)** — extends physical protection obligations from material in international transport to domestic use, storage, and transport, and to facilities.

Treaty regimes

- **NPT (1970)** — nonproliferation, disarmament, and the Article IV right to peaceful nuclear energy. That third pillar is the source of most North–South friction here.
- **CWC (1997) / OPCW** — the strongest verification regime in existence: declarations, routine inspection, challenge inspection, and (since 2018) an attribution mandate.
- **BWC (1975)** — no verification protocol, no inspectorate, and for most of its life a staff of three or four people. Negotiations on a legally binding protocol collapsed in 2001. A Working

Group on Strengthening the Convention has been meeting since 2022. This gap is the single largest structural weakness in the architecture.

Export control and cooperative arrangements (informal, not universal)

Nuclear Suppliers Group, Australia Group (chemical/biological), Missile Technology Control Regime, Wassenaar Arrangement, Zangger Committee. **None is a treaty; all are self-selected clubs.** Many developing states regard them as cartels that set global rules without them.

Alongside these: the **Proliferation Security Initiative** (2003, ~100+ endorsing states) for interdiction; the **Global Initiative to Combat Nuclear Terrorism** (2006); the **G7 Global Partnership**; **IAEA nuclear security guidance** and the Nuclear Security Fund; **INTERPOL** operations; and **FATF** standards on proliferation financing (Recommendation 7).

3. Where the System Is Failing

1. **Implementation, not law.** Two decades after 1540, national reporting shows large clusters of states with no dedicated legislation criminalizing WMD-related activity by non-state actors, no brokering controls, and no enforcement capacity. The obligation is universal; the capability is not, and the assistance mechanism has always been a matchmaking clearing-house rather than a funded program.
2. **The biology gap.** Commercial gene synthesis screening is largely **voluntary**. The International Gene Synthesis Consortium screens orders against sequences of concern, but non-member providers and increasingly benchtop synthesizers sit outside it. There is no binding international standard for screening customers or sequences.
3. **Radioactive sources are everywhere and lightly guarded.** Hospitals and industrial sites in every member state hold Category 1–2 sources. Replacing cesium blood irradiators with x-ray devices is a proven fix that costs money nobody has budgeted.
4. **Conflict zones erase control.** Territory held by armed groups contains chemical plants, re-

search reactors, and isotope stocks. Syria and Iraq demonstrated seizure of chemical precursors; conflict near operating nuclear facilities has repeatedly raised the prospect of a security failure at a live site.

5. **Delivery has democratized.** Commercial drones give non-state actors a dispersal platform that did not exist when this architecture was designed.
6. **Attribution and financing.** Dark-web procurement, front companies, and cryptocurrency complicate the financial tripwires FATF built for terrorism financing.

4. Case Study — Iran, June 2025

No recent event illustrates the gap between counter-proliferation and *material security* more sharply than the June 2025 strikes on Iran's nuclear programme, and delegates should expect it to be raised in this committee.

What happened

On 13 June 2025, Israel began a sustained air campaign against Iranian nuclear and military targets. On 22 June, the United States struck the enrichment sites at **Fordow**, **Natanz**, and **Isfahan** with heavy penetrating munitions. A ceasefire followed within days. The strikes were framed by both governments as counter-proliferation: an attempt to physically destroy a capability that diplomacy and sanctions had failed to constrain.

Why it belongs in *this* committee

The strikes were aimed at a state programme. The problem they created is a non-state actor problem.

Before the campaign, the IAEA had verified an Iranian stockpile of several hundred kilograms of uranium enriched to **60% U-235** — far above reactor grade, and a short technical step from weapons-usable material. That stockpile was under safeguards, which means inspectors physically accounted for it and knew where it was.

After the strikes, Iran suspended cooperation with the IAEA and inspectors withdrew. The Agency lost what it calls **continuity of knowledge**: it could no longer verify where that material was, whether it had been moved before the strikes,

whether it was buried under a collapsed facility, or whether any of it was unaccounted for. As of this writing that verification gap has not been fully closed, and delegates should check the current status of IAEA access before conference — this is a moving situation and the dais expects you to be up to date.

That gap is the entire concern of Resolution 1540. Material whose location is verified is material that cannot quietly go missing. Material in a damaged facility in a country that has expelled the inspectors is exactly the condition under which diversion, insider theft, or sale to a third party becomes possible. Nobody is alleging that this has happened. The point is that the international system no longer has the instrument that would tell us.

The questions this raises for delegates

1. **Does attacking a safeguarded nuclear facility make proliferation more or less likely?**
The IAEA General Conference has repeatedly held that armed attacks on safeguarded nuclear installations are prohibited and undermine the non-proliferation regime. If the predictable consequence of a strike is the expulsion of inspectors, has the strike advanced counter-proliferation or destroyed the verification that counter-proliferation depends on?
2. **Who is responsible for material accountancy after a conflict?** There is no mechanism in existing law that compels a state to re-admit inspectors, and no international body with the authority to search for missing fissile material.
3. **What obligation falls on the attacking state?** Nothing in 1540 or the NPT addresses the security of material that a third party's military action has put beyond verification.
4. **Is there a precedent problem?** If military force against nuclear facilities becomes normalized, states may conclude that safeguards and transparency make them targets — and respond by concealing programmes rather than declaring them.

The wider regional picture

The same conflict environment produced a second, more conventional non-state actor problem. Armed groups across the region now field capabilities that were the exclusive property of states a decade ago: **Houthi forces in Yemen have used long-range drones and anti-ship missiles** against commercial shipping and distant targets, demonstrating that precision delivery systems have proliferated far beyond national militaries. Combine a delivery system a non-state actor can already operate with material a non-state actor could theoretically obtain, and you have the scenario this committee exists to prevent.

Note on currency. This section describes events through mid-2026. Verify the status of IAEA access to Iranian facilities, the accounting of the 60% stockpile, and any subsequent Security Council action before you write your position paper. A delegate who cites the current situation accurately will have an advantage in this room.

5. Chronology of Non-State WMD Incidents and Responses

1995 — Aum Shinrikyo releases sarin in the Tokyo subway; 13 dead, ~6,000 injured. A cult with money and chemists synthesized a nerve agent; its earlier bio attempts failed on tacit knowledge, not intent.

2001 — Anthrax letters kill 5 in the US. Material traced to a US biodefense lab — the insider threat is real; attribution took 7 years.

****2003 — BBC China interdiction; Libya renounces WMD.**** Centrifuge parts seized en route exposed the Khan network; the template PSI success.

2004 — A. Q. Khan's televised confession; UNSCR 1540 adopted. Two decades of private-network proliferation to Libya, Iran, DPRK; Council responds by legislating for all states.

2006 — Litvinenko poisoned with polonium-210 in London. A radiological assassination moved through commercial airliners; ITDB-class material crossed borders undetected.

2010 — Stuxnet disclosed. Proliferation-relevant sabotage without a single shipment; the supply chain now includes code.

2015–16 — ISIS manufactures and uses sulfur mustard in Iraq/Syria (OPCW-confirmed). A non-state actor holding territory acquired production capability, not just an agent.

2016 — Investigators find Brussels attack cell surveilled a Belgian nuclear official. Jihadist interest in nuclear facilities is documented, not hypothetical.

2018 — Salisbury novichok attack; OPCW attribution mandate established. State-grade agent used abroad; the attribution fight now defines OPCW politics.

2022— — Zaporizhzhia NPP occupied amid active war. First operating nuclear plant in a combat zone; IAEA staff stationed on-site as a live experiment in wartime safeguards.

2024 — GA adopts biotech-era export control debates; benchtop DNA synthesizers reach market. Screening regime remains voluntary as capability decentralizes.

2025 — US and Israeli strikes on Fordow, Natanz, Isfahan; IAEA loses continuity of knowledge over ~400 kg of 60% HEU. See Section Four — the verification gap this committee must reckon with.

6. Bloc Positions

P3 (US, UK, France) and close partners. Prioritize enforcement, interdiction (PSI), export control harmonization, insider-threat programs, and biosecurity screening standards. Comfortable with Security Council-derived obligations. Resistant to linking counterterrorism measures to disarmament obligations under NPT Article VI.

Russian Federation. Historically a co-sponsor of nuclear-terrorism instruments (ICSANT was a Russian initiative) and supportive of state-centric physical protection. Opposes what it frames as Western-controlled informal export clubs and unilateral interdiction on the high seas. Contests OPCW's attribution mandate.

China. Supports 1540 implementation and capacity-building; emphasizes state sovereignty, opposes extraterritorial enforcement, and objects to export controls used as technology denial. Increasingly active in providing nuclear security training centers.

Non-Aligned Movement / G77. The largest bloc and the one most likely to shape the final text. Core positions: WMD terrorism cannot be separated from **general and complete disarmament**; the only guarantee against WMD use is elimination; export controls must not obstruct **Article IV** peaceful-use rights or access to biotechnology under **BWC Article X**; new obligations must come with assured, additional financing; the General Assembly, not the Security Council, is the legitimate forum for legislating global norms.

European Union. Coherent common position; funds a great deal of CBRN capacity-building (the EU CBRN Centres of Excellence). Push for BWC strengthening, biosecurity standards, and universalization of ICSANT and the CPPNM Amendment.

Arab Group. Links the topic to the unimplemented **1995 Resolution on the Middle East** and the establishment of a Middle East WMD-Free Zone; will resist any text that appears to accept a permanent asymmetry in the region.

African Group. Pelindaba Treaty parties; emphasis on porous borders, orphan radioactive sources, weak customs capacity, and the cost of compliance. Strong constituency for a funded assistance mechanism.

Small island and small states. Transshipment and flag-of-convenience shipping vulnerabilities; limited administrative capacity to file 1540 reports at all.

7. Questions to Consider

1. How is 1540 implementation actually **financed** — voluntary trust fund, assessed contribution, regional hubs, or a peer-review mechanism with teeth?
2. Should gene synthesis screening become a **binding international standard**, and who verifies compliance given the BWC has no inspectorate?
3. What is the appropriate division of labor between the Security Council (binding, unrepresentative) and the General Assembly (representative, recommendatory) on norm creation?
4. Can informal export control regimes be brought into a transparent, universal frame-

work without freezing developing states out of dual-use technology?

5. What obligations should attach to **private industry** — synthesis firms, chemical suppliers, cloud labs, shipping lines, freight forwarders — and can DISEC reach them at all?
6. How should states secure high-activity radioactive sources, and who pays for replacement technologies?
7. What happens to CBRN facilities in territory outside government control, and is there a role for peacekeeping or IAEA/OPCW arrangements in conflict?
8. Does AI-enabled biological design capability warrant a new instrument, a code of conduct, or nothing?

8. Sources and Further Reading

- UNSCR 1540 (2004), 1977 (2011), 2663 (2022); the 1540 Committee's Comprehensive Review
- UNODA fact sheets; the Secretary-General's

Mechanism for investigating alleged CBW use

- IAEA Nuclear Security Series and the ITDB fact sheet
- OPCW reports on Iraq/Syria mustard use; the IIT reports
- BWC Working Group on Strengthening documents (2022–)
- NTI Nuclear Security Index; the Johns Hopkins Center for Health Security's biosecurity work
- IAEA Board of Governors reports on the *Verification and monitoring in the Islamic Republic of Iran*, and Director General statements on continuity of knowledge following June 2025 — all published on iaea.org
- IAEA General Conference resolutions on the *Prohibition of armed attack or threat of attack against nuclear installations devoted to peaceful purposes*
- Your own country's 1540 national implementation report — every member state's is public, and it is the single best source for a position paper